

Entry No.	On what payable	Amount Rs. P.	Corresponding Form Number
1.	On application to register a trade mark for a specification of goods or services included in one class [Section 18(1)]	2500.00	<u>TM-1</u>
2.	On application to register a textile trade mark (other than a certification trade mark or a collective mark) consisting exclusively of numerals or letters or any combination thereof for a specification of goods or services included in one item of the Fifth Schedule under rule 25(5) & 145.	2500.00	<u>TM-22</u>
3.	On application to register a trade mark for goods or services included in a class from a convention country under section 18(1) & 154(2)	2500.00	<u>TM-2</u>
4.	On a single application under section 18(2) for the registration of a trade mark for different classes of goods or services from a convention country under section 154(2)	2500.00 for each class	<u>TM-52</u>
5.	On a single application under section 18(2) for	2500.00 for each class	<u>TM-51</u>

	the registration of a trade mark for different classes of goods or services.		
6.	On application to register a series trade mark under section 15 for a specification of goods or services included in a class or different classes	2500.00 for each trade mark and for each separate class thereof	<u>TM-8</u>
7.	On application to register a series of trade mark from a convention country under section 154(2) for a specification of goods or services included in a class or classes	2500.00 for each trade mark and for each separate class thereof	<u>TM-37</u>
8.	On application under section 63(1) to register a collective mark for a specification of goods or services included in a class	10,000.00	<u>TM-3</u>
9.	On application under section 71(1) to register a certification trade mark for a specification of goods or services included in a class.	10,000.00	<u>TM-4</u>
10.	On application for the registration of a textile trade mark (other than a certification trade mark or a collective mark) consisting exclusively of numerals or letters, or any combination thereof for a	2500.00	<u>TM-45</u>

	specification of goods or services included in one item of the Fifth Schedule under rule 145 from a convention country under section 154(2).		
11.	On a request under rule 40(1) to state grounds of decision.	1000.00	<u>TM-15</u>
12.	On a notice of opposition under section 21 (1), 64, 66 or 73 for each class opposed.	2500.00	<u>TM-5</u>
13.	On application for extension of time for filing notice of opposition under section 21(1)	500.00	<u>TM-44</u>
14.	On a counter statement in answer to a notice of opposition under section 21, for each application opposed, or in answer to an application under any of the section 47 or 57 in respect of each trade mark or in answer to a notice of opposition under section 59 or rule 101 for each application or conversion opposed.	1000.00	<u>TM-6</u>
15.	On notice of intention to oppose hearing under any of the section 21, 47, 57 and 59 by each party to the proceeding concerned.	500.00	<u>TM-7</u>
16.	On application under section 16(5) to dissolve the association between registered trade marks.	500.00 for each dissolution	<u>TM-14</u>
17.	For renewal under section 25 of the registration of a trade mark at the expiration of the last registration not otherwise charged.	5,000.00	<u>TM-12</u>

18.	For renewal under section 25 of the registration of a series trade mark at the expiration of the last registration- For the first two marks of the series of each separate class: For every additional mark of the series of each separate class.	5,000.00 2500.00	<u>TM-12</u>
19.	For renewal under section 25 of a single application of a trade mark for goods or services in more than one class-in respect of every class.	5,000.00 for each class	<u>TM-12</u>
20.	For renewal under section 25 of the registration of a collective mark/certification trade mark.	20,000.00	<u>TM-12</u>
21	On application under section 25(4) for restoration of a trade mark removed from the register.	3000.00	<u>TM-13</u>
22.	On application for renewal under proviso to section 25(3) within six months from the expiration of last registration of the trade mark.	3000.00 as surcharge .	<u>TM-10</u>
23.	On application for certificate of the Registrar under section 40(2) : For the first mark proposed to be assigned. For every additional mark of the same proprietor included in that assignment .	2500.00 500.00	<u>TM-17</u>
24.	On application for approval of the Registrar under section 41-		<u>TM-19</u>

	For the first trade mark .	2500.00	
	For every additional mark of the same proprietor included in the same transfer.	500.00	
25.	On application under section 42 for direction of a Registrar for advertisement of assignment without goodwill of a trade mark in use- For the first mark assigned. For every additional mark assigned with the same devolution of title.	2500.00 2500.00 500.00	<u>TM-20</u>
26.	On application for extension of time for applying for directions under section 42 for advertisement of assignment without goodwill of trade mark in use in respect of devolution of title- Not exceeding one month Not exceeding two months Not exceeding three months	500.00 1000.00 1500.00	<u>TM-21</u>

27.	On application under section 45 to register a subsequent proprietor in a case of assignment or transfer of a single trade mark: If made within six months from the date of acquisition of proprietorship. If made after expiration of six months but before 12 months from the date of acquisition of proprietorship. If made after 12 months from date of acquisition of proprietorship.	5000.00 7500.00 10,000.00	<u>TM-23</u> OR <u>TM -24</u> <u>TM-23</u> OR <u>TM-24.</u> <u>TM-23</u> OR <u>TM-24.</u> <u>TM-23</u> OR <u>TM-24.</u>
28.	On application under section 45 to register a subsequent proprietor of more than one trade mark registered in the same name, the devolution of title being the same in each case:- If made within six months from the date of acquisition of proprietorship- For the first mark For every additional mark If made after the expiration of six months but before twelve months from the date of acquisition of proprietorship:- For the first mark	5000.00 1000.00	<u>TM-23</u> OR <u>TM-24.</u>

	For every additional mark If made after expiration of twelve months from the date of acquisition of proprietorship:- For the first mark For every additional mark	7500.00 1500.00 10,000.00 2000.00	<u>TM-23</u> OR <u>TM-24</u>. <u>TM-23</u> OR <u>TM-24</u>. <u>TM-23</u> OR <u>TM-24</u>. <u>TM-23</u> OR <u>TM-24</u>. <u>TM-23</u> OR <u>TM-24</u>.
29.	On application under section 46(4) for extension of time for registering a company as subsequent proprietor of trade marks on one assignment :- Not exceeding two months Not exceeding four months Not exceeding six months	500.00 1000.00 1500.00	<u>TM-25</u>
30.	On application under any of the sections 47 or 57 for rectification of the register or removal	3000.00	<u>TM-26</u>

	of a trade mark from the register or cancellation of a registered collective mark or a certification trade mark		
31.	On application under rule 94 for leave to intervene in proceeding under any of the sections 47 or 57 for rectification of the register or removal of trade mark from the register or under rule 133 or 139 in respect of a collective mark or certification trade mark.	500.00	<u>TM-27</u>
32.	On application under section 49 to register a registered user of a registered trade mark in respect of goods or services within the specification thereof.	5000.00	<u>TM-28</u>
33.	On application under section 49 to register the same registered user of more than one registered trade mark of the same registered proprietor, where all the trade marks are covered by the same registered user agreement in respect of goods or services within the respective specification thereof and subject to the same conditions and restrictions in each case:- For the first mark For every additional mark of the proprietor included in the application, and in the registered user agreement	5000.00 3000.00	<u>TM-28</u>
34.	On application under clause (a) of sub-section 1 of section 50 to vary the entry of a registered user of one trade mark where the trade marks are covered by the same registered user in respect of each of them:- For the first mark For every additional mark included in the		<u>TM-29</u>

	application	5000.00 2500.00	
35.	On application under clause (b) of sub-section (1) of section 50 for cancellation of the entry of a registered user of one trade mark- Where the application includes more than one trade mark- For the first mark For every additional mark included in the application	2500.00 2500.00 500.00	<u>TM-30</u>
36.	On application under clause (c) or (d) of sub-section (1) of section 50 to cancel the entry of a registered user of one trade mark:- Where the application includes more than one trade mark:- For the first mark For every additional mark included in the application	5000.00 5000.00 2000.00	<u>TM-31</u>
37.	On notice under rule 90(2) of intention to intervene in one proceeding for the variation or cancellation of entries of a registered user of a trade mark	500.00	<u>TM-32</u>
38.	On application under section 58 to change the name or description of a registered proprietor or a registered user of a trade mark where there has been no change. In the proprietorship or in the identity of the registered user (except where the application is made as a result of an order of a public	1000.00	<u>TM-33</u>

	authority or in consequence of a statutory requirement as per law in India where the application includes more than one trade mark – For the first trade mark For every additional mark included in the application	1000.00 1000.00 500.00	
39.	On application under section 58 to alter an entry of the address of a registered proprietor or of a registered user of a trade mark unless exempted from fee under rule 96(3): Where the application include more than one trade mark – and where the address in each case is the same and is altered in the same way- For the first entry For every other entry included in the application	500.00	<u>TM-34</u>

		500.00	
		200.00	
40.	On application to make an entry of an address for service in India of a registered proprietor or a registered user of a trade mark- where the application include more than one trade mark and the address for service to be entered is the same in each case- For the first entry For every other entry included in the application.	500.00 500.00 200.00	<u>TM-50</u>
41.	On application to alter or substitute an entry of an address for service in India in the register unless exempted from fee under rule 96(3) . Where the application includes more than one trade mark and the address in each case is the same and is altered or substituted in the same way- For the first entry	500.00	<u>TM-50</u>

	add or to alter a registered trade mark for each application opposed		
45.	On application under section 60 for conversion of specification.	1000.00	<u>TM-40</u>
46.	On notice of opposition in each separate class under sub-section 2 of section 60 to a conversion of the specification or specifications of a registered trade mark: For the first mark For every additional mark included in the notice of opposition.	1500.00 1500.00 700.00	<u>TM-41</u>
47.	On application under section 66 for amendment of the deposited regulations of a collective mark or alteration under section 74(2) for the regulation of a certification trade mark- Where the marks are entered in the register as associated trade marks- For the regulation of one registration. For the same or substantially same regulation of each additional registration proposed to be altered in the same way and included in the same application.	1000.00 1000.00 200.00	<u>TM-42</u>

48	On application under section 68 to remove the registration of a collective mark or cancel or vary the registration of a certification trade mark under section 77	1000.00	<u>TM-43</u>
49.	For a search under rule 24(1) in respect of one class	500.00	<u>TM-54</u>
50.	On request for the Registrar's preliminary advice under section 133(1) for a trade mark in respect of one class.	1000.00	<u>TM-55</u>
51.	On request for certificate of the Registrar under section 137(other than a certificate under section 23(2)).	500.00	<u>TM-46</u>
52.	On request for certificate of the Registrar [other than certificate under section 23(2)] of the registration of a series of the trade mark under section 15 for each class.	500.00	<u>TM-46</u>
53.	On request for a certified copy of any entry in the register or of any document under section 148(2).	500.00	<u>TM-46</u>
54.	On request to enter in the register and advertise a note of certificate of validity, under rule 124 in respect of one mark in a class	200.00	<u>TM-47</u>
55.	On request, not otherwise charged for correction of a clerical error or for amendment under section 18(4), 22 and 58, except where the request is made as a result of an order of a public authority or in consequence of a statutory requirement as per law in India.	500.00	<u>TM-16</u>
56.	On application for extension of time for a month or part thereof under section 131 [not being a time expressly provided in the Act or prescribed by rule 79 or by rule 80(4)]	500.00	<u>TM-56</u>
57.	On application for review of the Registrar's decision under section 127 (c)	2000.00	<u>TM-57</u>
58.	On petition (not otherwise charged) for obtaining Registrar's order on any interlocutory matter in a contested proceeding.	2500.00	
59.	On request to Registrar for particulars of advertisement of a mark under rule 46.	250.00	<u>TM-58</u>

60	For inspecting the documents mentioned in section 148(1):- - relating to any particular trade mark for every hour or part thereof. - computer search (when made available) for every fifteen minutes - search of index mentioned in section 148 for every hour or part thereof	200.00 400.00 200.00	
61	For copying of documents, (photocopy or typed) for every page of part thereof in excess of one page.	5.00 per page(subj ect to a minimum of Rs. 5.00)	
62.	On request for a duplicate or further copy of certificate rule 62(3)	500.00	<u>TM-59</u>
63.	On a counter statement in answer to a notice of opposition in respect of a collective trade mark or a certification trade mark under section 64, 66,73 or 77.	1500.00	<u>TM-9</u>
64.	For search and issue of certificate under rule 24(3).	5000.00	<u>TM-60</u>
65.	On application under sub-section (b) of section 25 of Geographical Indications of Goods (Registration and Protection)Act, 1999 to refuse or invalidate the registration of a trade mark which conflicts with or which contains or consists of a geographical indication identifying goods or class or classes of goods notified under sub-section (2) of section 22 of the said Act.	3000.00	<u>TM-74</u>
66.	On application under sub-section (a) of section 25 of Geographical Indications of Goods (Registration and Protection)Act, 1999 to refuse or invalidate the registration of a trade mark containing or consisting of a geographical indication not originating in the	3000.00	<u>TM-73</u>

	territory of a country or a region or locality in that territory which the geographical indication indicates.		
67.	Notice of intention to attend hearing under section 64, 66, 73 or 77 in respect of a collective mark or in respect of a certification trade mark, as the case may be.	500.00	<u>TM-7</u>
68.	On a request to divide an application or to divide a single application under proviso to section 22.	1000.00 plus appropriate class fee	<u>TM-53</u>
69.	On application under sub-rule 16 of rule 25 towards inclusion of specification of goods or services in excess of five hundred characters at the time of filing of application as excess space fee.	10.00 per character	<u>TM-61</u>
70.	On application under section 43, rule 140(2) for consent of Registrar to the assignment or transmission of certification trade mark.	1000.00	<u>TM-62</u>
71.	On application under rule 38(1) for the expedited examination of an application for the registration of a trade mark.	12,500.00	<u>TM-63</u>
72.	On application under section 63(1) to register a collective mark of a specification of goods or services included in a class from a convention country under section 154(2).	10,000.00	<u>TM-64</u>
73.	On application under section 71 to register a certification trade mark for a specification of goods or services included in class from a convention country under section 154(2).	10,000.00	<u>TM-65</u>
74.	On request for an expedited certificate of the Registrar (other than a certificate under section 23(2) of the Act) or certified copies of documents under proviso to rule 119.	2500.00	<u>TM-70</u>
75.	On request for an expedited search under proviso to rule 24(1).	2500.00	<u>TM-71</u>
76.	On request for an expedited search and issuance of a certificate under rule 24(5).	25000.00	<u>TM-72</u>
77.	On application for registration as a trade mark agent under 152.	1000.00	<u>TMA-1</u>

78.	For registration of a person as a trade mark agent under rule 154.	1000.00	
79.	For continuance of the name of a person in the Register of Trade Marks Agents under rule 156:- For every year (excluding the first year) to be paid on the 1st April, in each year. For the first year to be paid along with the fee or registration, in the case of a person registered at any time between the 1st April, and 30th September. N.B. A year for this purpose will commence on the 1st day of April, and end on the 31st day of March following.	1000.00 1000.00	
80.	On application for restoration of the name of a person to the Register of trade marks agents under rule 159.	1000.00 plus continuance fee under entry no. 79.	<u>TMA-2</u>
81.	On application for an alteration of any entry in the Register of Trade Marks Agent under rule 160.	200.00	<u>TMA-3</u>
82.	For each addition to the registered entry of a trade mark that may be associated with a newly registered mark under section 16(1).	500.00	
83.	On a single application under section 18(2) for the registration of a collective mark for different classes of goods or services.	10,000.00 for each class.	<u>TM-66</u>
84.	On a single application under section 18(2) for the registration of a collective mark for different class of goods or services from a convention country.	10,000.00 for each class.	<u>TM-67</u>
85.	On a single application under section 18(2) for the registration of a certification trade mark for different class of goods or services.	10,000.00 for each class.	<u>TM-68</u>

86.	On a single application under section 18(2) for the registration of a certification trade mark for different class of goods or services from a convention country under section 154(2).	10,000.00 for each class.	<u>TM-69</u>
87.	On request for search and issuance of a certificate pursuant to clause (ii) of sub-section (2) of section 20 of the Companies Act, 1956.	5000.00	<u>TM-75</u>

THE SECOND SCHEDULE FORMS

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<u>TM-22</u>	18(1) rule 25(5), 144 and 145	Application to register a textile trade mark (other than a certification trade mark or a collective mark) consisting exclusively of numerals or letters or any combination thereof for a specification of goods or services included in one item of the Fifth Schedule under rule 145	2
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